

25STCV10435 25STCV10435

County: los-angeles

Division: Civil Law and Motion

Department: 512

Hearing date: 2026-06-25

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Case Number: 25STCV10435 Hearing Date: June 25, 2026 Dept: 512

HEARING DATE: Thurs., June 25, 2026 JUDGE /DEPT: Mkrtchyan/512

CASE NAME: Fuller, et al. v. Loan Depot, et al. COMPL.

FILED: 04-08-25

CASE NUMBER: 25STCV10435 FAC

FILED: 10-16-25

NOTICE: NO SAC

FILED: 05-04-26

PROCEEDINGS: MOTION

TO DISMISS

MOVING PARTY: Defendant

Earthscope Investment LLC

RESP. PARTY: Plaintiffs Margaret Lynn Fuller and

Marsha J. Davis

MOTION TO DISMISS

(CCP § 581(f)(2))

TENTATIVE RULING:

Defendant Earthscope Investment LLC's

Motion to Dismiss for Failure to Amend Complaint After Demurrer was Sustained

with Leave to Amend is DENIED as moot.

Moving party is ordered to
give notice.

SERVICE:

☒ Proof of Service Timely
Filed (CRC, rule 3.1300) OK

☐
☐ Correct Address (CCP §§ 1013, 1013a) NO

☒ 16/21 Court Days Lapsed
(CCP §§ 12c, 1005(b)) OK

OPPOSITION: Filed on May 6, 2026 ☐ Late ☐ None

REPLY: None filed as
of June 22, 2026 ☐
Late ☒ None

ANALYSIS:

I.
Background

On April 8, 2025, Plaintiffs Margret
Lynn Fuller and Marsha J. Davis ("Plaintiffs") filed a complaint against
Defendants Loan Depot, Earthscape Investment LLC ("Earthscape"), and Does 1-20,
alleging causes of action for Wrongful Foreclosure, Cancellation of Instrument,
and Slander of Title.

On October 8, 2025, the Court
sustained Earthscape's Demurrer to the Complaint with leave to amend. (10/8/25
Order.)

On October 16, 2025, Plaintiffs filed
a First Amended Complaint ("FAC") against Defendants, alleging causes of action
for Wrongful Foreclosure, Fraud in the Inducement, Breach of Contract,

Violation of California Homeowner Bill of Rights, Violation of Dual Tracking Laws, Cancellation of Instrument, and Slander of Title.

On February 26, 2026, the Court sustained Earthscape's Demurrer to the FAC as to the first cause of action with 30 days' leave to amend and otherwise overruled the Demurrer. (2/26/26 Order.)

On May 4, 2026, Earthscape filed the instant Notice of Motion and Motion to Dismiss for Failure to Amend Complaint After Demurrer was Sustained with Leave to Amend (the "Motion").

That same day, Plaintiffs filed a Second Amended Complaint ("SAC").

On May 6, 2026, Plaintiffs filed an Opposition to the Motion.

On May 28, 2026, the Court continued the hearing on the Motion due to clerical error and gave notice. (5/28/26 Order.)

On June 2, 2026, Earthscape filed an Answer to the SAC.

To date, no Reply to the Motion has been filed.

II. Procedural Issues

As an initial matter, the Court notes that service of the Motion is defective as the Motion's proof of service states it was served solely by electronic mail, but the Motion's proof of service fails to state the electronic service address to which the Motion was served.

However, given the timely Opposition filed, the Court exercises its discretion to address the Motion on the merits.

III.

Legal

Standard & Discussion

Earthscape moves to dismiss Plaintiffs'

FAC on the grounds that Plaintiffs failed to file a SAC following the Court's sustaining of Earthscape's Demurrer to the FAC on February 26, 2026.

Accordingly, Earthscape states the Court should use its discretion to dismiss the Complaint pursuant to Code of Civil Procedure section 581, subdivision (f)(2) and California Rules of Court, rule 3.1320(h).

In Opposition, Plaintiffs state the

SAC was filed, albeit untimely, prior to the instant hearing date, and the reason for the untimely filing was solely due to Plaintiffs' counsel's mistake, inadvertence, and neglect – “specifically a calendar error and miscalculation of the applicable deadline by Plaintiffs' counsel.” (Opp., p. 2, Uku Decl.) Further, Plaintiffs highlight that the Court's order in February 2026 was to sustain Earthscape's demurrer to the FAC only as to the FAC's first cause of action and not the remainder of the FAC. (Opp., p. 2.)

Code of Civil Procedure, section 581,

subdivision (f)(2) provides that upon motion of any party, the Court may dismiss the Complaint when a defendant's demurrer is sustained with leave to amend and the plaintiff fails to amend the pleading within the time allowed by the court. (Code Civ. Proc., § 581, subd. (f)(2).)

Here, more than 30 days have passed

since the ruling sustaining the Demurrer to the first cause of action in the FAC with leave to amend. However, Plaintiffs filed a SAC prior to the instant hearing date, and the Opposition includes a sworn declaration attesting to Plaintiffs' counsel's fault in failing to timely file the SAC. (Opp., Uku Decl.)

Dismissal under Code of Civil

Procedure section 581, subdivision (f)(2) is within the Court's discretion. (Code Civ. Proc., § 581, subd. (f)(2); see *Contreras v. Blue Cross of Cal.* (1988) 199 Cal.App.3d 945, 948.) The Court is not inclined to dismiss the action given Plaintiffs' counsel's declaration explaining the reasons for the untimely SAC and that the SAC was filed prior to the instant hearing date.

Moreover, the Court notes that

Earthscape filed an Answer to the SAC on June 2, 2026.

For all these reasons, the Motion is
DENIED as moot.

IV.

Conclusion
& Order

Accordingly, Defendant Earthscape
Investment LLC's Motion to Dismiss for Failure to Amend Complaint After
Demurrer was Sustained with Leave to Amend is DENIED as moot.

Moving party is ordered to
give notice.